LEAD NOW FOUNDATION

Building Leaders. Transforming Communities.

Safeguarding Policy

Children, Young People and Vulnerable Adults

2026 Edition · Version 1.0

Young people can only lead when they are safe. This policy sets out how everyone connected to Lead Now Foundation prevents harm, recognises it, and acts when something goes wrong.

Lead Now Foundation (registered as LeadNow Foundation)
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Document control

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Approved by	Board of Directors, Lead Now Foundation
Date of approval	_____
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Safeguarding contacts

Role	Who and how
Safeguarding Officer	Chief Executive Officer (CEO). First point of contact for all concerns.
Deputy Safeguarding Officer	Program Lead. Acts when the CEO is unavailable.
Confidential reporting	info@leadnowfoundation.org, monitored by the Program Lead
Board safeguarding lead	Chair, Board of Directors. Receives any concern that involves the CEO.
Emergency helplines (24 hours)	Emergency **112** · Childline **1098** · Women Helpline **181** · Tele-MANAS (mental health) **14416** · Cybercrime **1930** / cybercrime.gov.in

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1. Introduction

1.1 What safeguarding means

Safeguarding is the responsibility an organisation has to make sure, as far as reasonably practicable, that its people, operations and programmes do no harm to children, young people or vulnerable adults. It means not exposing them to the risk of discrimination, neglect, injury or abuse (together, "harm"), and making sure that any concern about their safety is acted on and, where required, reported to the appropriate authorities.

Safeguarding also covers our own staff and volunteers when they are vulnerable — for example, when they are unwell or at risk of harm or abuse.

For Lead Now Foundation, safeguarding is not separate from youth leadership. Young people cannot take risks, speak up, or lead change unless the spaces we create with them are safe.

1.2 Purpose

This policy sets out Lead Now Foundation's commitment to preventing harm and promoting the health and wellbeing of children, young people and vulnerable adults. It informs, guides and directs everyone covered by it, and provides the framework through which we build a culture of safeguarding at every level of the organisation.

1.3 Scope

This policy is mandatory for everyone who works with or on behalf of Lead Now Foundation, including staff, young leaders, volunteers, interns, consultants and members of the Board of Directors. In this policy, they are referred to as **"our people"**. Partners and visitors are covered through partnership agreements and the Visitor Code of Conduct.

Our people must understand and follow this policy and the documents linked to it, including the Code of Conduct and the Human Resource Manual.

1.4 Accountability

The Board of Directors and the CEO hold ultimate responsibility for the welfare and protection of children, young people and vulnerable adults in the context of Lead Now Foundation's work. Levels of accountability vary, but safeguarding is everyone's responsibility.

1.5 Compliance

Compliance is compulsory from the first day of any relationship with Lead Now Foundation. Any breach will be addressed through the disciplinary procedure and may lead to legal action. We will make sure everyone understands their own responsibilities — including the obligation to report every concern, allegation or disclosure — and knows how to do so.

1.6 Distribution

This policy only works if people know it exists and understand it. Lead Now Foundation will:

- Make the policy available in print and digitally to everyone it applies to, and publish it on our website.
- Produce Hindi and other local-language versions, so the policy is accessible and understood by everyone it concerns.
- Co-create a youth-friendly summary with young people, so that the young people we work with know their rights and how to raise a concern.
- Share the policy with partner organisations so that our safeguarding commitments, principles and practices are clear.

2. Policy Statement

Our commitment

The welfare and protection of children, young people and vulnerable adults comes **before** the success of any programme or strategic objective.

Lead Now Foundation has **zero tolerance** for harm to children, young people and vulnerable adults. We will put reasonable measures in place to protect, as far as possible, the safety and wellbeing of everyone we work with, and to protect the communities where we work from harm caused by our programmes or our people.

Everyone has an equal right to protection from abuse and exploitation, regardless of age, caste, race, sex, gender identity, sexual orientation, marital status, pregnancy or parenthood, language, religion, political or other opinion, national, ethnic or social origin, disability, economic status, birth or any other status.

We will respond promptly, appropriately and constructively to everything children and young people tell us. We will always listen, take every disclosure seriously and act on it.

Children, young people and vulnerable adults are not only people to be protected. They are **key partners** in designing, reviewing and improving how we keep everyone safe, and we will involve them in doing so.

3. Principles

Our approach to safeguarding is guided by the following principles, drawn from widely recognised safeguarding practice and read together with India's Protection of Children from Sexual Offences (POCSO) Act, 2012 and the Juvenile Justice (Care and Protection of Children) Act, 2015. Everyone covered by this policy is expected to uphold them.

Principle	What it means in practice
Best interests	In every decision affecting a child or young person, their best interests are the primary consideration.

Principle	What it means in practice
Empowerment	We start from the assumption that each person is best placed to judge their own wellbeing, and we involve them in decisions about it.
Protection	We provide support and representation for those in greatest need.
Prevention	Preventing harm is our primary objective — it is better to stop harm than to respond to it.
Proportionality	Our response is proportionate to the risk and as least intrusive as possible.
Partnership	We work with communities, families and local services to find local solutions.
Accountability	We are transparent and accountable for how we deliver safeguarding.

4. United Nations Convention on the Rights of the Child

Lead Now Foundation endorses the general principle of the United Nations Convention on the Rights of the Child (UNCRC): that every right it guarantees must be available to every child without discrimination. We give particular weight to Article 19, which gives every child the right to protection from all forms of violence, abuse and neglect, and Article 12, which gives every child the right to be heard in matters that affect them.

Our work is in India, which ratified the UNCRC in 1992. Culture or tradition is never an acceptable reason for anyone covered by this policy to breach, contradict or dispute the rights the UNCRC guarantees. A summary of key articles is in Appendix C.

5. Legal Compliance

Lead Now Foundation is committed to full compliance with Indian law. The laws most relevant to this policy include:

- **The Protection of Children from Sexual Offences (POCSO) Act, 2012**, which protects every child (anyone under 18) from sexual abuse and exploitation, and places a legal duty on every person to report it.
- **The Juvenile Justice (Care and Protection of Children) Act, 2015**, which governs the care and protection of children, including through Child Welfare Committees.

- **The Bharatiya Nyaya Sanhita, 2023**, India's criminal code, which covers offences including sexual offences, trafficking and the protection of victims' identity.
- **The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013.**
- **The Information Technology Act, 2000** and **the Digital Personal Data Protection Act, 2023**, which govern online conduct and the handling of personal data, including children's data.
- Laws on child marriage, child labour, disability, caste-based atrocities and domestic violence, listed in Appendix D.

Lead Now Foundation will complete a local safeguarding mapping for each location where it works, identifying the relevant authorities and the services available for referral and signposting. The mapping will be refreshed at least once a year (Appendix F).

6. What We Expect of Our People

6.1 Four duties: Recognise, Respond, Record, Report

Everyone covered by this policy will be trained to fulfil four duties.

Recognise

Recognise the signs that harm may be happening to a child, young person or vulnerable adult, and recognise when the good practice in this policy is not being followed.

Respond

Respond appropriately and proportionately to a disclosure, incident, allegation or concern. When someone tells you something:

DO

- ✓ Listen calmly
- ✓ Show empathy and reassure them they were right to tell you
- ✓ Ask who, what, when and where — but never why
- ✓ Repeat back to check you have understood
- ✓ Explain what will happen next
- ✓ Report it, the same day

DON'T

- × Become defensive or argue
- × Dismiss or minimise what you hear
- × Blame anyone
- × Assume without knowing the facts
- × Promise to keep it secret
- × Ignore the problem
- × Try to investigate yourself

Record

Record the details of a concern or disclosure factually and accurately, without speculation, opinion or assumption. For a disclosure, use the person's own words as far as possible.

Report

Report promptly to the most relevant and accessible person: in the first instance the **Safeguarding Officer (CEO)**, then the **Deputy Safeguarding Officer (Program Lead)**, or another senior staff member you feel comfortable reporting to. If the concern involves the CEO, report to the **Chair of the Board of Directors**.

> **Legal duty to report child sexual abuse**
>
> Under Section 19 of the POCSO Act, anyone who knows or has reason to believe that a sexual offence against a child has been, or is likely to be, committed **must report it to the Special Juvenile Police Unit or the local police**. Failing to report is an offence under Section 21.
>
> This duty belongs to each individual and cannot be handed to someone else. Tell the Safeguarding Officer too — but never delay reporting to the police while waiting for an internal decision. The Safeguarding Officer will support you.

6.2 Prohibited behaviours

To keep the risk of harm as low as reasonably practicable, Lead Now Foundation strictly prohibits the following. This list is not exhaustive and is backed by the Code of Conduct, which everyone must sign.

- × Any sexual activity with a person under 18, regardless of the local age of majority or consent. Mistaken belief about a person's age is not a defence.
- × Sexual abuse or exploitation of any child, young person or vulnerable adult, in person or online.
- × Exchanging money, employment, goods, services or programme benefits for sex or sexual favours.
- × Hitting, physically punishing or assaulting a child, young person or vulnerable adult.
- × Putting a child, young person or vulnerable adult at risk of harm.
- × Sexual activity with a programme participant or a community member in the communities where we work.
- × Staff having a sexual or romantic relationship with a young leader or volunteer.
- × Creating, accessing, possessing or sharing sexual images of anyone under 18.

6.3 Safeguarding Officer and Deputy

A trained Safeguarding Officer and Deputy are essential to making this policy work. At Lead Now Foundation, the **CEO** is the Safeguarding Officer and the **Program Lead** is the Deputy Safeguarding Officer. Their terms of reference, which follow widely accepted standards, are in Appendix B.

7. Reporting and Responding to Concerns

Everyone covered by this policy must take every safeguarding concern, allegation, incident or disclosure seriously, and is duty bound to report it in line with this section. Timely and effective action is essential, and the welfare of the person affected is always the first consideration.

Step	What happens	When
1. Keep them safe	If anyone is in immediate danger or needs urgent medical care, call **112** first.	Immediately
2. Report	Tell the Safeguarding Officer (CEO) or Deputy (Program Lead). If the CEO is involved, tell the Board Chair or email info@leadnowfoundation.org. For child sexual abuse, also report to the police (Section 6.1).	Same day
3. Record	Complete the Cause for Concern form (Appendix A), password-protect it and send it only to the person you reported to.	Within 24 hours
4. Case discussion	The Safeguarding Officer (or Board Chair, if the CEO is involved) convenes only the people who need to be involved, assesses the case and decides next steps.	Within 72 hours
5. Act and follow up	Agreed actions are taken, the person affected is supported, and records are kept securely.	As agreed

Important to remember

- Before writing a report, you can ask the Safeguarding Officer or Deputy for support, guidance and advice.
- It is never an individual's job to investigate. Ask no leading questions. Keep your report factual and objective, without speculation, assumption or opinion.
- Once you have submitted your report, your responsibility is fulfilled, unless you are later asked to help with an investigation.
- Allegations against staff or volunteers are also managed under the disciplinary procedure in the Human Resource Manual. The person concerned may be suspended on full pay while the matter is investigated; this is not a finding of guilt.
- If someone is at risk of harming themselves, stay with them if it is safe to do so, contact the Safeguarding Officer, and call **112** or Tele-MANAS on **14416**.

Possible outcomes of a case discussion

Decisions are based on the case assessment and take into account the safeguarding principles, confidentiality, local context, legal obligations, the scope of this policy and the principle of do no harm. Outcomes may include:

- No further action

- Internal investigation (using the Safeguarding Investigation Form, Appendix G)
- External investigation
- Staff or volunteer suspension
- Programme suspension
- Referral to the Child Welfare Committee, District Child Protection Unit or other services
- Signposting to support services
- Notification of the police or other authorities
- Contacting emergency services

8. Roles and Responsibilities

Lead Now Foundation will make sure that everyone covered by this policy is trained in, and understands, their safeguarding responsibilities.

8.1 Board of Directors

Under Section 166 of the Companies Act, 2013, directors must act in good faith in the interests of the company, its employees and the community, and exercise due and reasonable care. For Lead Now Foundation, this includes making sure that no one who benefits from or works with the organisation is harmed through contact with it — particularly the children, young people and vulnerable adults we reach in communities. The Board will:

- Hold overall responsibility for safeguarding.
- Act in the best interests of children, young people and vulnerable adults.
- Make sure safeguarding policies and procedures are in place, monitored and reviewed.
- Make sure allegations of abuse are responded to appropriately, including those involving the CEO.
- Designate the **Chair of the Board** as Board safeguarding lead, with leadership responsibility for the organisation's safeguarding arrangements.

Safeguarding is a **standing agenda item at every Board meeting**. The CEO reports to the Board Chair at least quarterly on safeguarding, including the number and type of concerns raised (without identifying anyone), training completed, and any lessons learned.

8.2 Safeguarding Officer (CEO) and Deputy (Program Lead)

- The first point of contact for everyone seeking advice on safeguarding and child protection.
- Take lead responsibility for safeguarding and child protection across the organisation.
- Refer cases to the police, Child Welfare Committee or other authorities as required by law.
- Keep this policy up to date, complete and in line with current law.
- Test and review safeguarding procedures.
- Make sure there is a staff structure that can fulfil safeguarding responsibilities.
- Make sure safeguarding receives the highest priority at the most senior levels, including the Board.
- Make sure there are procedures for managing allegations against staff and volunteers, and for safe recruitment.
- Keep secure safeguarding records and share them appropriately.
- Advocate for the resources needed to fulfil safeguarding responsibilities.

8.3 Tier 1: CEO and senior leadership

- Implement this policy across the organisation, and make sure resources are available to do so.

- Build a culture in which safeguarding is present at every level and in every programme and activity.
- Champion safeguarding as a primary consideration in all decisions, including strategic ones.
- Make sure safeguarding practice is reviewed and maintained.
- Manage allegations and disclosures operationally, including coordination with authorities and signposting to relevant organisations.

8.4 Tier 2: Program Lead and anyone who manages people

- Make sure everyone they manage knows their roles and responsibilities under this policy.
- Practise safe recruitment in line with this policy and the Human Resource Manual.
- Make sure new staff and volunteers receive safeguarding orientation and training at induction.
- Make sure this policy is implemented, followed and regularly communicated in their teams and programmes.
- Support their teams to use the reporting procedures.

8.5 Tier 3: All staff and consultants

- Fully comply with this policy and its procedures.
- Attend safeguarding training.
- Stay alert to signs of abuse.
- Promote welfare and conditions that support healthy growth and development.
- Report every concern to the Safeguarding Officer or Deputy.

8.6 Tier 4: Young leaders, volunteers and interns

- Are recruited and screened appropriately for their role.
- Are trained and inducted to the appropriate level.
- Know the reporting routes: how to raise a concern, and to whom.
- Are supported to help shape and review how Lead Now Foundation keeps young people safe.

9. Safe Recruitment

Safe recruitment is one of the most effective ways to prevent abuse. Full details are in the Human Resource Manual; the safeguarding essentials are below.

9.1 Advertisement

- Roles are advertised on appropriate platforms, to attract suitable candidates and deter unsuitable ones.
- Every advertisement includes a statement of Lead Now Foundation's commitment to safeguarding.
- Job descriptions accurately reflect the role and its requirements, so that candidates can be screened fairly and unsuitable appointments avoided.

9.2 Application

- Candidates explain how their skills and experience match the job description.
- Applicants declare any criminal convictions and pending criminal proceedings, within the limits of Indian law.
- Applicants account for any gaps in their employment history and their reasons for leaving each role.

9.3 Interview

- The interview explores the candidate's motivation for, and attitudes towards, working with young people.
- At least two interviewers (ideally three) with different expertise are present, to build a rounded picture and reduce unconscious bias.
- The candidate's understanding and experience of safeguarding is assessed.
- Wherever possible, young people take part in selecting staff who will work directly with them.

9.4 Pre-employment checks

- No one starts work until satisfactory references are received. Two references are required, normally from previous employers, from referees who have known the candidate for at least three years and are not family members.
- References for roles involving direct work with children, young people or vulnerable adults ask explicitly about the candidate's suitability for that work.
- Anyone — employee, volunteer or partner staff — who will work directly with children or vulnerable adults must provide **police verification or a Police Clearance Certificate** and sign a self-declaration before starting.

9.5 Induction

Safeguarding must be part of every person's journey with us from day one. All new staff and volunteers receive safeguarding orientation and training as a mandatory part of induction, covering at least:

- What safeguarding is, and who it protects
- Types and signs of abuse
- Safeguarding in the Lead Now Foundation context
- This policy and the Code of Conduct
- Roles and responsibilities, including the legal duty to report under the POCSO Act
- How to report a concern

Everyone must sign the Code of Conduct and the Self-Declaration (Section 17) to complete induction. Safeguarding refresher training is held at least once a year, and the Human Resource Manual sets out quarterly refreshers for staff.

10. Types and Signs of Abuse

Abuse and neglect take many forms, and every situation must be considered on its own facts. The categories and signs below are a guide, not a checklist. A single sign does not prove abuse, and the absence of signs does not mean abuse is not happening. If something worries you, report it.

10.1 Physical abuse

Includes hitting, slapping, pushing, burning, misuse of medication, restraint, and physical punishment.

Possible signs

- Fractures, bruises, burns, pain or marks; not wanting to be touched
- Injuries with no explanation, or that do not match the account given
- Frequent injuries
- Subdued or changed behaviour in the presence of a particular person

10.2 Sexual abuse

Includes rape, sexual assault, inappropriate touching, indecent exposure, sexual harassment, sexual teasing or innuendo, taking sexual images, exposing someone to pornography or sexual acts, and any sexual act to which an adult has not consented or was pressured into consenting. Any sexual activity with a child is abuse.

Possible signs

- Bruising, especially on the thighs, buttocks or upper arms, or marks on the neck
- Sexually transmitted infections
- Unusual difficulty walking or sitting
- Pregnancy in a child, or in an adult unable to consent
- Uncharacteristic sexual language or behaviour, or sexual knowledge inappropriate for their age
- Self-harm
- Poor concentration, withdrawal or disturbed sleep
- Fear of, or withdrawal from, relationships

10.3 Online abuse and exploitation

Includes grooming, sextortion, sharing or threatening to share intimate images, cyberbullying, stalking, and exposure to harmful content through phones, social media, gaming or messaging apps.

Possible signs

- Secrecy about online activity or a new phone, SIM or account
- Distress after using a device; sudden withdrawal from online spaces

- An older “friend” met online, or unexplained gifts or money
- Fear of images or messages being shared

10.4 Domestic abuse

Includes psychological, physical, sexual, financial and emotional abuse, verbal abuse and humiliation within a family or relationship, as well as dowry-related violence and so-called “honour”-based violence.

Possible signs

- Low self-esteem, or feeling the abuse is their own fault
- Physical injuries such as bruising, cuts or broken bones
- Being verbally abused or humiliated in front of others
- Fear of outside intervention
- Isolation from friends and family
- Limited access to money

10.5 Psychological and emotional abuse

Includes threats of harm or abandonment, preventing contact with others, humiliation, blaming, controlling, intimidation, coercion, harassment, verbal abuse, cyberbullying, isolation, and unreasonable withdrawal of services or support.

Possible signs

- Silence or withdrawal when a particular person is present
- Changes in mood or behaviour; insomnia
- Low self-esteem
- Uncooperative or aggressive behaviour
- Changes in appetite or weight
- Distress, tearfulness or anger

10.6 Financial or material abuse

Includes theft, fraud, online scams, coercion over money or property, and misuse of someone’s possessions or benefits.

Possible signs

- Missing possessions
- Unexplained lack of money or withdrawals
- A person managing their finances is evasive or uncooperative
- Unusual interest from others in the person’s assets
- Living conditions that do not match their resources

10.7 Trafficking, bonded and forced labour

Includes human trafficking, bonded labour, forced labour, child labour and domestic servitude, in which people are coerced, deceived or forced into exploitation.

Possible signs

- Signs of physical or emotional abuse; appearing malnourished or withdrawn
- Isolation from the community; appearing to be under someone else's control
- Living in crowded or poor conditions, or at the place of work
- No identity documents or personal belongings
- Fear of the police or of talking to strangers

10.8 Discriminatory abuse

Includes harassment, slurs, exclusion or other unequal treatment because of caste, religion, gender, gender identity, sexual orientation, disability, age or any other characteristic.

Possible signs

- Withdrawal and isolation
- Anger, frustration, fear or anxiety
- Support offered does not account for the person's individual needs

10.9 Organisational abuse

Includes neglect and poor practice within an organisation, from one-off incidents to ongoing ill-treatment, caused by its structures, policies, processes or practices.

Possible signs

- Lack of flexibility or choice for the people we serve
- Inadequate staffing or supervision
- Lack of adequate procedures, or poor record keeping
- Personal matters discussed publicly
- Lack of management oversight and support

10.10 Neglect and acts of omission

Includes ignoring medical, emotional or physical care needs, failing to provide access to health, care or education, and withholding necessities such as food, medicine or shelter.

Possible signs

- Poor or unhygienic surroundings
- Poor physical condition or personal hygiene
- Malnutrition or unexplained weight loss
- Untreated injuries or medical problems
- Unusual withdrawal from social interaction
- Inadequate clothing

10.11 Self-neglect

Includes a person neglecting their own hygiene, health or surroundings.

Possible signs

- Very poor personal hygiene or unkempt appearance
- Lack of essential food, clothing or shelter
- Malnutrition or dehydration
- Inability or unwillingness to treat illness or injury

11. Safe Programme Design

11.1 Do no harm

Lead Now Foundation is committed to the ethical principle of "do no harm". In some situations it may be better not to act, or to do nothing at all, than to risk causing more harm than good. We will never knowingly implement a programme that could directly or indirectly cause harm.

11.2 Residual risk

Even with rigorous mitigation, some risk can never be completely eliminated. We are committed to keeping that residual risk as low as reasonably practicable.

11.3 Minimum standards for every programme

- A safeguarding focal point is named for every programme, with clearly defined responsibilities and a direct line to the Safeguarding Officer (CEO) and Deputy (Program Lead).
- A safeguarding risk assessment covers every part of the programme that could directly or indirectly harm children, young people or vulnerable adults, including online activities, travel and overnight stays.
- Programmes are designed to avoid situations in which anyone working for or on behalf of Lead Now Foundation is alone, or one-to-one, with a child, young person or vulnerable adult.
- Written consent from a parent or guardian is obtained before anyone under 18 takes part in travel, overnight or residential activities.
- Young people know how to raise a concern, and there is a safe, accessible way for them to do so.

11.4 Safeguarding Code of Conduct

Always

- Be polite and considerate, and set the example of good conduct you want others to follow.
- Make sure children and young people know who you are and why you are there.
- Treat children and young people with respect, and never act in a way that could shame, humiliate or degrade them.
- Challenge unacceptable behaviour and report any concern immediately.

Never

- Use language or behaviour that discriminates on the basis of caste, gender, race, culture, age, disability, religion or sexuality.
- Do anything that could bring Lead Now Foundation into disrepute. We do not dictate how you live your personal life, but conduct outside working hours that contradicts this policy will be treated as a breach and investigated.
- Show favouritism, or spend excessive time with one child or young person.

- Give money or gifts to an individual young person or their family. Any gifts should go to groups and be of minimal value.
- Be alone with a child or young person, or put yourself in a situation that could be misinterpreted.
- Take a child or young person in your vehicle, to your accommodation or to any other private space.
- Share personal contact details or connect with children or young people on personal social media.
- Hit or physically punish a child or young person, including by physical restraint.
- Engage in, or allow, sexually provocative games or behaviour.
- Sleep in the same room or bed as a child or young person you are working with.
- Develop a physical or sexual relationship with a child, young person or programme participant.

12. Working with Partners

- Safeguarding policies and practice vary widely across organisations — in understanding, rigour and training — and these differences are compounded across different legal, social and cultural contexts.
- These differences can threaten the safety of programmes and increase risk, both for Lead Now Foundation and for the people we work with.
- The strength of a partner's safeguarding is therefore a key factor in deciding whether to enter a partnership. The Partner Safeguarding Checklist (Appendix I) will be completed before any partnership is agreed, and safeguarding obligations will be written into every partnership agreement.
- Lead Now Foundation will, as far as reasonably practicable, support partners with less safeguarding experience or capacity to fulfil their responsibilities safely and effectively. Strengthening youth-led and community organisations is part of how we work.

12.1 Ending a partnership

- If a prospective partner cannot fulfil its safeguarding responsibilities, Lead Now Foundation may decide not to enter the partnership.
- If, once a partnership is established, acceptable practice is not being followed, Lead Now Foundation may end the partnership on these grounds.

13. Confidentiality and Information Sharing

Lead Now Foundation is committed to protecting the confidentiality of the personal information it handles. Information given in confidence for one purpose will not be used for another, or shared with a third party, without the person's consent — except where sharing is necessary to prevent harm or is required by law.

Personal information will be collected, used and shared in line with the **Digital Personal Data Protection Act, 2023**, the **Information Technology Act, 2000**, and the common-law duty of confidentiality.

> **Never promise to keep a secret**
>
> When a child or young person tells you something, you cannot promise to keep it confidential. Explain kindly that you may need to share it with people who can help keep them safe, and that you will only share it with those who need to know.

13.1 What counts as confidential information

- Personal information of a private or sensitive nature, including about a person's body, family, relationships, home or private communications.
- Information that is not already lawfully public or readily available elsewhere.
- Information shared in circumstances where the person could reasonably expect it would not be passed on.

13.2 Sharing information appropriately and securely

When information must be shared, share it properly and in good time. The following rules guide good practice:

1. Share only what is necessary for the purpose.
2. Understand the limits of any consent given, especially if the information came from a third party.
3. Distinguish clearly between fact and opinion.
4. Share only with the people who need to know.
5. Check, as far as reasonably practicable, that the information is accurate and up to date.
6. Share securely: confirm who you are speaking to, make sure you cannot be overheard, and use password-protected files and secure email.
7. Ask the recipient whether they plan to pass it on, and make sure they understand the limits of consent.
8. Tell the person the information is about (and anyone else who provided it) that it has been shared, where it is safe to do so.

The identity of a child who is a victim of a sexual offence, or who is in need of care and protection, must never be disclosed publicly in any form. This is a legal requirement under Section 23 of the POCSO Act and Section 74 of the Juvenile Justice Act.

14. Supervision

When working with groups of children or young people, the level of supervision must suit their age and needs. In general, younger children need closer supervision and a higher ratio of adults to children.

14.1 Effective supervision

Those commissioning, planning or running a session are responsible for making sure that the people supervising it are suitable. They should consider:

- The nature and duration of the activity.
- The location and environment.
- The age, gender and developmental stage of the young people.
- The young people's abilities and needs (behavioural, medical, emotional and educational).
- Whether supervisors have been safely recruited and screened, and have signed the Code of Conduct.
- Whether supervisors are experienced, trained or qualified for both the activity and the group, and understand their safeguarding responsibilities.
- Whether appropriate insurance is in place.

14.2 Ratios

The following ratios are a guide to the minimum level of supervision. Where the group is mixed-gender, the supervising team should include both women and men wherever possible, and there should never be fewer than two adults.

Age of children or young people	Minimum adults : children
0–2 years	1 : 3
2–3 years	1 : 4
4–8 years	1 : 6
9–12 years	1 : 8
13–18 years	1 : 10

Appropriate supervision may need to be higher depending on gender mix, behaviour, abilities within the group, the nature and duration of the activity, staff experience, the location or accommodation, any medical needs, and any specialist equipment.

15. Digital Privacy, Security and Safety

Digital tools are central to how young people learn, organise and lead — and to much of Lead Now Foundation's work. They must be safe and secure, and must not lead to inappropriate or unethical collection or use of anyone's data. These guidelines are not exhaustive; they support the safe management of online spaces.

- Children's and young people's personal information is only accessed, collected, shared or used with their informed and active consent. For anyone under 18, verifiable consent from a parent or guardian is also required under Section 9 of the Digital Personal Data Protection Act, 2023, and we will not track, profile or target advertising at children.
- Every group or page set up by Lead Now Foundation has at least two staff moderators, who monitor conversations, images and activity, and challenge, educate and intervene as needed.
- Moderators help group members understand online safety, including how to manage privacy settings.
- There must be enough moderation to prevent anyone working for or on behalf of Lead Now Foundation, including a moderator, from having a private conversation with a child.
- This applies to email and messaging too: use group inboxes and a team phone that more than one staff member can access, rather than personal accounts or numbers.
- Staff must not use personal social media accounts to deliver Lead Now Foundation activities. Use an organisational account that keeps personal and professional lives separate.
- Never post images or stories of young people who take part in our work on your personal accounts, or accept their contact requests on personal accounts. Consent is given to Lead Now Foundation, not to individuals.
- Think before you post or share. Never upload or post discriminatory, defamatory, obscene or abusive content.
- Creating, viewing, storing or sharing sexual material involving anyone under 18 is a serious criminal offence under Section 67B of the Information Technology Act and the POCSO Act. Report online abuse to the Safeguarding Officer, and to **1930** or cybercrime.gov.in.

15.1 New and emerging media

Social media, AI tools and online platforms change quickly, and each brings new risks. Lead Now Foundation will assess these risks before adopting new tools, and will take every precaution to protect the privacy and dignity of young people, so that they are not put at risk through our publicity, communications or campaigns. Where there is any risk of negative consequences for a young person, we will always decide in favour of their safety.

16. Media and the Use of Images

16.1 Commitment

Every photograph, video or story we capture must respect human dignity and take into account the rights, safety and wellbeing of the people portrayed. We tell stories with young people, not about them.

16.2 Minimum standards

- Respect local traditions and any restrictions on photographing people, objects or places, and follow Indian law on photography and privacy.
- Obtain written consent using the Consent Form (Appendix H) before taking or using images. For anyone under 18, written consent from a parent or guardian is required, together with the young person's own agreement.
- Respect a person's right to refuse. If you sense reluctance or confusion, do not take the photo.
- Do no harm. Revealing someone's identity or story can expose them to reprisal, violence or rejection in their community.
- Never publish anything that could identify a child who has experienced abuse or exploitation.
- Do not publish a young person's full name together with their photograph and precise location.
- Do not misrepresent the person, situation or context.
- Store images and stories securely, with access limited to those who need it.
- Consent covers a period of five years, after which images and stories are archived or destroyed, as agreed at the time of consent. Consent can be withdrawn at any time.
- No payment or compensation of any kind is given in exchange for a photograph or consent.

16.3 Large events and crowds

At public events with large crowds, individual consent is not needed for general crowd shots. However, close-up or identifiable images of children or young people in the foreground still require consent before they are published.

16.4 Safe storage of images

Once images are taken and consent obtained, they must be stored safely, using a risk-based approach. Digital files are password-protected and stored only on organisational systems; hard copies and consent forms are kept in lockable storage.

16.5 Data protection

Images of people are personal data, especially when stored with names, addresses or other details. Capturing, holding, storing, sharing and destroying images are all covered by the Digital Personal Data Protection Act, 2023.

16.6 Ethical use of images

- Photos and captions should be factual and true to the context of the story.
- A recognisable person must never be falsely captioned, or shown in a way that implies something untrue about them.
- Where there is any risk of misunderstanding, add a disclaimer, for example: “Images are used for illustrative purposes only and do not imply anything about the people shown.”
- Avoid stereotypes — for example, repeatedly using images of particular castes, religions, communities or genders to illustrate particular issues.
- If images are edited to protect identities, say so.
- Images should show people’s autonomy, agency and dignity — as leaders and changemakers, not as objects of pity.

17. Self-Declaration

To be signed by everyone covered by this policy at induction, and kept on their personnel or volunteer file.

1. I have read and understood the Lead Now Foundation Safeguarding Policy.
2. I agree to uphold the values, principles and procedures set out in the policy.
3. I know who the Safeguarding Officer and Deputy Safeguarding Officer are, and how to contact them.
4. I understand my safeguarding responsibilities in my role with, or relationship to, Lead Now Foundation.
5. I understand that safeguarding is everyone's responsibility, and that it is my duty not to behave in a way that could cause harm, or that could cause or be seen as abuse.
6. I will be accountable and transparent, and will not put myself in situations where there is a risk of allegations being made.
7. I know the reporting process, and how to report a safeguarding incident, allegation, suspicion or disclosure.
8. I will report any concern or suspicion of abuse or non-compliance with this policy by anyone working with Lead Now Foundation, including senior staff.
9. I understand that I have a personal legal duty under the POCSO Act to report any sexual offence against a child to the police.
10. I understand that sexual activity with anyone under 18 is strictly prohibited, and that mistaken belief about a person's age is not a defence.
11. I will always treat children, young people and vulnerable adults with respect and dignity.
12. I understand that a breach of this policy may lead to disciplinary action, legal action or criminal investigation.
13. I will help create and maintain an environment that prevents all forms of exploitation and abuse, and allows children, young people and vulnerable adults to thrive.

By signing below, I commit to uphold the values, behaviours and requirements set out above.

Name	
Role	
Signature	
Date	

Appendix A: Cause for Concern Form

If the person is in immediate danger or needs urgent medical treatment, call 112 first. For child sexual abuse, you must also report to the police (Section 6.1). Password-protect this form and send it only to the Safeguarding Officer (CEO), the Deputy (Program Lead), or — if the CEO is involved — the Chair of the Board.

Section A — completed by the person reporting

Part 1: Your details	
Date	
Name	
Role	
Email	
Phone number	

Part 2: What are you reporting?	
Type (tick one)	☐ A disclosure ☐ A concern ☐ An allegation ☐ An incident

Part 3: The person concerned	
Name	
Age or date of birth	
Gender	
Date and time of concern	
Programme or connection to Lead Now Foundation	
Current location	

Part 4: Your account	
What happened?	Record facts only, in the person's own words where possible. Do not investigate, ask leading questions, speculate or give opinions.

Section B — completed by the Safeguarding Officer

Immediate action taken	Responsible	Timeframe
1.		
2.		
3.		

Agency contacted	Yes / No	Name, contact and advice received
Police / Special Juvenile Police Unit		
Child Welfare Committee / District Child Protection Unit		
Childline (1098) / Women Helpline (181)		
Parents or carers (if appropriate and safe)		
Other (specify)		

Completed by (name)	
Date	

Appendix B: Safeguarding Officer and Deputy — Terms of Reference

Lead Now Foundation is committed to fully meeting its safeguarding responsibilities. A trained Safeguarding Officer and Deputy are a vital internal resource for this. The requirements below follow widely accepted standards.

Role	Holder
Safeguarding Officer	Chief Executive Officer (CEO)
Deputy Safeguarding Officer	Program Lead

Requirements

- A paid member of staff, with enough seniority to manage the demands of the role.
- Police verification completed, and two references received and followed up.
- Trained for the role, including external safeguarding training at least once every two years to stay up to date with law and good practice.

Responsibilities

- Be the first point of contact for all staff and volunteers on any safeguarding matter.
- Help staff access and understand this policy.
- Keep this policy up to date, and review it at least once every two years.
- Support compliance with safe recruitment procedures.
- Work with the Board of Directors to make sure this policy and related procedures are followed and regularly updated, and that directors understand and fulfil their safeguarding duties.
- Keep detailed, accurate and secure written records of concerns and referrals.
- Make sure this policy is widely available and accessible, including publicly.
- Promote a working environment that prevents harm and supports the healthy development and wellbeing of children, young people and vulnerable adults.
- Know the contact details of the relevant authorities — police, Special Juvenile Police Unit, Child Welfare Committee, District Child Protection Unit and Women's Commission — and keep the local mapping (Appendix F) current.

Appendix C: UN Convention on the Rights of the Child — Key Articles

The UNCRC sets out the rights of every child (anyone under 18). India ratified it in 1992. The articles most relevant to this policy are summarised below; the full text is available from UNICEF.

Article	Right
2	Every right in the Convention applies to every child, without discrimination of any kind.
3	The best interests of the child must be a primary consideration in all actions concerning children.
6	Every child has the right to life, survival and development.
12	Every child has the right to express their views freely in all matters affecting them, and to have those views given due weight.
13–15	Children have the right to freedom of expression, thought and association.
16	Every child has the right to privacy.
19	Every child has the right to be protected from all forms of violence, injury, abuse, neglect and exploitation.
28–29	Every child has the right to education that develops their personality, talents and abilities.
32	Children must be protected from economic exploitation and harmful work.
34–36	Children must be protected from sexual exploitation and abuse, from trafficking, and from all other forms of exploitation.

Appendix D: Legal Framework

Lead Now Foundation is committed to full compliance with all relevant national and international safeguarding law. Key legislation includes, but is not limited to, the following.

The Constitution of India

Part III of the Constitution guarantees fundamental rights. Article 14 guarantees equality before the law; Articles 15 and 17 prohibit discrimination and abolish untouchability; Article 21 protects life and personal liberty; Article 21A guarantees free and compulsory education for children aged 6 to 14; and Article 23 prohibits trafficking and forced labour. Article 24 prohibits the employment of children under 14 in factories, mines and other hazardous work.

Who is a "child" under Indian law

The National Commission for Protection of Child Rights treats everyone under 18 as a child, and so does this policy. Specific laws define age as follows:

Context	Age	Law
Sexual offences	Under 18 — no valid consent possible	POCSO Act, 2012; Bharatiya Nyaya Sanhita, 2023
Marriage	Under 21 (men), under 18 (women)	Prohibition of Child Marriage Act, 2006
Care, protection and juvenile justice	Under 18	Juvenile Justice (Care and Protection of Children) Act, 2015
Employment	Under 14: no employment (limited family exceptions). 14–18: no hazardous work	Child and Adolescent Labour (Prohibition and Regulation) Act, 1986 (amended 2016)
Personal data	Under 18 — verifiable parental consent required	Digital Personal Data Protection Act, 2023

Main protection risks and the law

Risk	Key law	What our people should do
Sexual abuse and exploitation	POCSO Act, 2012; Bharatiya Nyaya Sanhita, 2023	Report to the police (mandatory) and the Safeguarding Officer
Online sexual abuse and image sharing	IT Act, 2000 (s. 67B); POCSO Act	Do not view, save or forward the material. Report to the Safeguarding Officer and 1930

Risk	Key law	What our people should do
Physical and corporal punishment	Right of Children to Free and Compulsory Education Act, 2009 (s. 17); Juvenile Justice Act (s. 82)	Report to the Safeguarding Officer
Child labour	Child and Adolescent Labour (Prohibition and Regulation) Act, 1986	Report to the Safeguarding Officer, who may refer to Childline (1098) or the CWC
Trafficking and bonded labour	Bharatiya Nyaya Sanhita, 2023; Immoral Traffic (Prevention) Act, 1956; Bonded Labour System (Abolition) Act, 1976	Report to the Safeguarding Officer and the police
Child marriage	Prohibition of Child Marriage Act, 2006	Report to the Safeguarding Officer, who may contact the Child Marriage Prohibition Officer, Childline or the CWC
Domestic violence	Protection of Women from Domestic Violence Act, 2005	Report to the Safeguarding Officer; signpost to the Women Helpline (181)
Caste-based violence and discrimination	Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989	Report to the Safeguarding Officer
Discrimination based on disability or gender identity	Rights of Persons with Disabilities Act, 2016; Transgender Persons (Protection of Rights) Act, 2019	Report to the Safeguarding Officer
Sexual harassment at work	POSH Act, 2013	Complain to the Internal Complaints Committee (see HR Manual)

International conventions

India has ratified the UN Convention on the Rights of the Child (1989), the Convention on the Elimination of All Forms of Discrimination against Women (1979), and the Convention on the Rights of Persons with Disabilities (2006).

Appendix E: Definitions

Term	Meaning
Adult	A person aged 18 or over.
Allegation	A claim that someone has done something wrong or illegal, which has not yet been proven.
Child	Any person under 18 (POCSO Act, 2012).
Young person	An adolescent or young adult taking part in Lead Now Foundation's work. India's National Youth Policy defines youth as ages 15 to 29. A young person under 18 is also a child under this policy.
Consent	Agreement freely given, based on knowledge and understanding of what is involved and its likely consequences. A child cannot consent to sexual activity.
Confidential information	Sensitive, non-public information shared with a reasonable expectation of privacy. Confidentiality has limits when someone is at risk of harm.
Disclosure	When someone tells you, directly or indirectly, that they have been or are being abused. Every disclosure must be reported, whenever the abuse happened.
Direct work	Any activity involving direct, regular or unsupervised contact with children or vulnerable adults, in person or online. People doing direct work require police verification.
Duty of care	Our responsibility to protect children, young people and vulnerable adults from harm as far as reasonably possible.
Our people	Everyone covered by this policy: staff, young leaders, volunteers, interns, consultants and members of the Board of Directors.
Partner	Any individual or organisation working with Lead Now Foundation. The level of safeguarding scrutiny depends on whether the partner does direct work.
Vulnerable adult	A person aged 18 or over who, because of disability, illness, age, circumstances or other factors, is or may be unable to take care of themselves or protect themselves from significant harm or exploitation. Vulnerability can be temporary or long-term, and can change with a person's environment, capacity or resources.

Appendix F: Local Safeguarding Mapping

Before any programme begins in a new location, the programme focal point completes this mapping with the Safeguarding Officer. Contact details are verified directly and refreshed at least once a year, so that no time is lost if a concern arises. A copy is kept at each programme site.

Location / programme	
Completed by	
Date verified	

Statutory bodies

Body	Role	Contact person, phone and email
Nearest police station and Special Juvenile Police Unit (SJPU)	Receives reports of crimes against children, including mandatory POCSO reports	
Child Welfare Committee (CWC) for the district	Decides on the care and protection of children in need	
District Child Protection Unit (DCPU)	Coordinates child protection services in the district	
State Commission for Protection of Child Rights (in Delhi, DCPCR)	Monitors child rights and receives complaints	
State Commission for Women (in Delhi, DCW)	Receives complaints about violence and discrimination against women	
One Stop Centre (Sakhi) for the district	Medical, legal, counselling and shelter support for women facing violence	
District Legal Services Authority (DLSA)	Free legal aid	

Health and support services

Service	Type of support	Contact person, phone and email
Nearest government hospital (with medico-legal facility)	Emergency care and medical examination	
Mental health service	Counselling and psychiatric support	
Local NGOs working on child protection, gender or mental health	Shelter, counselling, legal or community support	
Community-based groups	Local support and referral	

National helplines

Helpline	Number
Emergency (police, fire, ambulance)	112
Childline	1098
Women Helpline	181
Tele-MANAS (mental health)	14416
Cybercrime	1930 / cybercrime.gov.in

Appendix G: Safeguarding Investigation Form

Used when a case discussion decides that an internal investigation is needed. Where the CEO is the subject of a concern, the Chair of the Board of Directors acts as Principal Decision Maker.

Date commissioned	
Timeframe	
Case reference	

Role	Name	Position
Principal Decision Maker		
Lead Investigator		
Second investigator (note-taker)		

Objective	To establish whether, on the balance of probabilities…

Interviewee	Position	Designation
		Alleged survivor
		Subject of complaint
		Witness
		Witness

Summary of findings	
Outcome and actions	
Signed (Lead Investigator) and date	

Appendix H: Consent Form — Use of Images and Stories

All photographs, videos and other images are taken in line with the standards in Section 16 of the Lead Now Foundation Safeguarding Policy. Lead Now Foundation will take all reasonable steps to keep images secure and to use them only for the purposes agreed below.

How to use this form: if the person cannot read it, explain each point carefully in a language they understand. For anyone under 18, a parent or guardian must also sign. If no parent or guardian is available, do not publish any image or story from which the young person could be identified.

Consent agreement (tick each statement you agree to)

☐ I understand that Lead Now Foundation may photograph, film or record me, and may use my image, my first name, and my words or drawings to help tell a story and to support and promote its work, inside and outside the organisation.

☐ I agree that these materials may be used by Lead Now Foundation and the partners, donors and government agencies it works with — for example on websites, social media, at events, and in presentations and publications.

☐ I understand that Lead Now Foundation will only use these materials for charitable purposes, and not for the profit of any business.

☐ I understand that Lead Now Foundation will not publish my surname, email address, home address or phone number.

☐ I understand this consent lasts for five years, and that I can withdraw it at any time by contacting info@leadnowfoundation.org.

☐ I have not been paid or offered anything in return for this consent.

☐ I give my informed consent to the above.

Participant	
Name	
Signature	
Date of birth	
Date	
Phone and address (kept confidential)	

Parent or guardian (required for participants under 18)	
I am the parent / guardian of	
and I consent to the use of their image and story as described above.	
Name and signature	
Relationship to participant	
Date	
Phone and address (kept confidential)	

Appendix I: Partner Safeguarding Checklist

Completed by the Program Lead before any partnership is agreed. A "No" does not rule out a partnership, but must be addressed through an agreed support plan before any direct work begins.

Partner organisation	
Will the partner work directly with children or vulnerable adults?	☐ Yes ☐ No

Question	Yes / No	Notes or support needed
Does the partner have a written safeguarding or child protection policy?		
Does it have a named safeguarding focal point?		
Does it carry out reference checks and police verification for staff in direct work?		
Are its staff and volunteers trained in safeguarding?		
Does it have a clear way to report and respond to concerns?		
Does it have a Code of Conduct that staff sign?		
Does it obtain consent before using images and stories?		
Has it constituted an Internal Complaints Committee (if required under the POSH Act)?		
Will it agree to safeguarding clauses in the partnership agreement, including reporting concerns to Lead Now Foundation?		

Decision	☐ Proceed ☐ Proceed with support plan ☐ Do not proceed
Completed by (Program Lead), signature and date	
Reviewed by Safeguarding Officer, signature and date	

Approval

This Safeguarding Policy was approved by the Board of Directors of Lead Now Foundation and comes into effect on the date below. It will be reviewed at least every two years, or sooner if required by changes in law, in the organisation, or following a serious incident.

_____

Chair, Board of Directors (Board safeguarding lead)

Name: _____ Date: _____

_____

Chief Executive Officer (Safeguarding Officer)

Name: _____ Date: _____

Building Leaders. Transforming Communities.